ORDINANCE NO. 509

AN ORDINANCE CREATING THE OFFENSE OF HAZARDOUS DRIVING FOR VIOLATIONS WITHIN THE CITY OF RECTOR AND SETTING A RANGE FOR THE FINE, DECLARING AN EMERGENCY AND FOR OTHER PURPOSES.

WHEREAS, the City of Rector has an interest in keeping it's streets safe and thereby protecting it's citizens; and

WHEREAS, operating a vehicle on the streets of Rector in an inattentive manner should be prohibited by law and the City Council sees the need to create the offense of Hazardous Driving and set an appropriate penalty range so that the District Court Judge may have some discretion as to the seriousness of the particular offense and therefore the penalty.

NOW THEREFORE BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS AS FOLLOWS:

SECTION 1: That an offense of Hazardous Driving will exist and govern such conduct as operating a motor vehicle in a manner that is unsafe and thereby creating a hazard to the citizens of Rector, on the streets of Rector, Arkansas.

SECTION 2: That all fines collected pursuant to this ordinance shall benefit the City of Rector, Arkansas and be distributed by the District Court Clerk in accordance with Arkansas State Law.

SECTION 3: That the fine charged for the offense of Hazardous Driving shall be not less than $100.00 nor more than $500.00 and shall be set by the District Court Judge.

SECTION 4: That any Ordinances that in any way are in conflict with this Ordinance are hereby repealed.

EMERGENCY CLAUSE: It is determined by the City Council of Rector, Arkansas that the city has great health and safety issues to address and it is in the best interest of the City to make the city streets safe for it's citizens immediately, therefore an emergency is hereby declared to exist and this ordinance is immediately necessary for the preservation of the public peace, health and safety and shall become effective immediately after its passage and publication.

CITY OF RECTOR

RON KEMP, MAYOR

Aug. 1, 2005
DATE

ATTEST:

Lowell McKenney
LOWELL McKENNEY, CITY CLERK/TREASURER